

3.	23CV1809	JAMES A. WHITE ET AL VS. CHRISTOPHER S. WHITE ET AL
DISTRIBUTION OF FUNDS AFTER PARTITION		

Plaintiffs, James A. White, Wilderich A. White, Anna-Maria M. White, and Ilse-Maria Rosenberg (collectively the “Plaintiffs”), move for an order to: 1) to reallocate ownership interest in 5 Acres Birch Hill Ct., Georgetown, CA 95634, bearing El Dorado APN 061-691-012-000 (“Parcel 1”) to Plaintiff James White, solely; 2) to reallocate ownership interest in 6530 Birch Hill Court, Georgetown, CA, bearing El Dorado APN 061-170-023-000 (“Parcel 2”) to Plaintiff Wilderich A. White and Anna-Maria M. White, each as to a 50% tenant in common interest, and; 3) to distribute the deposited funds totaling \$190,000 (the “residue”) to Plaintiffs.

No opposition has been filed.

This matter stems from a partition action stemming from the real estate located at 6530 Birch Hill Court, Georgetown, California, 95634. On April 10, 2026, the Court granted Plaintiffs’ motion for an order adopting the fair market value of the property in this matter, and approving Plaintiffs’ agreement for partition of the property by appraisal. Pursuant to the Court’s order, Plaintiffs, James A. White, Wilderich A. White, and Anna-Maria M. White (collectively “Purchasing Plaintiffs”), were required to deposit \$190,000 into Court under Code of Civil Procedure §§ 572 and 573. On April 16, 2026, Purchasing Plaintiffs deposited \$190,000 into the Court to buyout the respective 1/5 interests of Plaintiff Ilse-Maria Rosenberg and Defendant Christopher White (“Defendant”).

Plaintiffs seek reimbursement from Defendant’s share of the buyout; specifically: 1) distribution of Plaintiff, Ilse-Maria Rosenberg’s full \$95,000; and 2) distribution of the Defendant’s \$95,000 to themselves based on the following calculations for the Defendant’s offset: Plaintiff Wilderich A. White’s Property Expenses: \$5,265.30 ; Plaintiff Anna-Maria M. White’s Property Expenses: \$5,537.56; Parcel Cleanup Costs \$53,500; Attorneys’ Fees \$36,983.99; Amount Defendant Christopher White Owes \$101,286.85.

Plaintiffs contend that they have a right to recover costs and expenditures made for the common benefit totaling \$101,286.85, yet the amount allocated to Defendant is only \$95,000. Purchasing Plaintiffs accordingly request distribution to themselves of the entire \$95,000 allocated to Defendant pursuant to Code of Civil Procedure §§ 874.010 and 874.040.

REALLOCATION OF INTERESTS

Plaintiffs request the Court reallocate interests such that Plaintiffs Wilderich White and Anna-Maria White shall be the sole owners of Parcel 2, and James White shall be the sole owner of Parcel 1.

Code of Civil Procedure § 873.960 provides:

At the hearing, the court shall examine the report and witnesses. If the court determines that the proceedings have been regularly conducted, that transfer of title to the interests may regularly be made, and that no facts appear which would make such transfer inequitable, it shall confirm the report and order the interests transferred to the acquiring parties in proportion to their respective interests, or in such other proportion as is set out in the agreement. The order shall be conditioned upon payment of the amounts fixed as the purchase price and any other amounts required by the agreement, the giving of any required security, and payment by the parties of the expenses of the procedure authorized by this chapter and of the general costs of the partition or an appropriate share thereof. Thereafter the court, upon motion of a party to the agreement or of the referee, made upon not less than 10 days' notice to the parties who have appeared, shall determine whether the conditions have been fulfilled and, if so, shall enter judgment confirming the transfer; otherwise, upon such further proceedings as may be ordered, the action or proceeding shall be ordered terminated.

The Court's April 10, 2026 order instructs: Upon receipt of the Buyout Amount, the Court, on application of any Party, shall issue an Order: (1) reallocating the ownership interests in Parcel 1 such that Plaintiff James White shall be the sole 100% owner of Parcel 1 in fee simple absolute; and (2) reallocating the ownership interests in Parcel 2 such that Plaintiffs Wilderich A. White and Anna-Maria M. White shall each be undivided one-half (50%) tenant in common owners of Parcel 2.

As the Buyout Amount has been deposited by the Plaintiffs, the Court grants Plaintiffs request for reallocation.

DISTRIBUTION OF FUNDS

Every partition action includes a final accounting according to the principles of equity for both charges and credits upon each co-tenant's interest. Credits include expenditures in excess of the co-tenant's fractional share for necessary repairs, improvements that enhance the value of the property, taxes, payments of principal and interest on mortgages, and other liens, insurance for the common benefit, and protection and preservation of title. (Code of Civ.Proc. § 872.140; Powell On Real Property (Rohan ed. 1989) vol. 4A, ¶ 607[6], p. 50–77.) *Wallace v. Daley* (1990) 220 Cal.App.3d 1028, 1035–1036.

Except as otherwise provided in this article, the court shall apportion the costs of partition among the parties in proportion to their interests or make such other apportionment as may be equitable. Code of Civil Procedure § 874.040. When a cotenant makes advances from his own pocket to preserve the common estate, his investment in the property increases by the

entire amount advanced. Upon sale of the estate he is entitled to be reimbursed his entire advancement before the balance is equally divided. *Southern Adjustment Bureau, Inc. v. Nelson* (1964) 230 Cal.App.2d 539, 541.

The costs of partition include reasonable attorney's fees incurred or paid by a party for the common benefit. Code of Civil Procedure § 874.010. The costs of partition include reasonable expenses, including attorney's fees, necessarily incurred by a party for the common benefit in prosecuting or defending other actions or other proceedings for the protection, confirmation, or perfection of title, setting the boundaries, or making a survey of the property, with interest thereon at the legal rate from the time of making the expenditures. Code of Civil Procedure § 874.020.

Plaintiff, James A. White, incurred \$36,983.99 in attorneys' fees for the common benefit. Plaintiffs request reimbursement of their fees incurred. Underwood Declaration in Support of Motion to Distribute Funds After Partition provides a report for all the billable hours incurred by the Plaintiffs, which totals 83.9 hours.

Plaintiffs request the following distribution of funds:

- Plaintiff Ilse-Maria Rosenberg receives \$95,000, plus one-quarter (1/4) of court accrued interest to date.
- Plaintiff Wilderich White receives \$32,015.30, plus one-quarter (1/4) of court accrued interest to date, in addition to a one-half (50%) tenant in common interest in Parcel 2.
- Plaintiff Anna-Maria White receives \$32,287.56, plus one-quarter (1/4) of court accrued interest to date, in addition to a one-half (50%) tenant in common interest in Parcel 2.
- Plaintiff James White to receive the remainder (\$30,697.14), plus one-quarter (1/4) of court accrued interest to date, in addition to a 100% ownership interest in Parcel 1.

Plaintiffs have provided an accounting and evidentiary support documenting expenditures made by Plaintiffs Wilderich A. White and Anna-Maria M. White, as well an estimated cost to clean up Parcel 2. Plaintiffs request reimbursement of their fees and costs incurred. The Court accordingly grants Plaintiff's request to distribute the deposited funds totaling \$190,000 as indicated herein.

TENTATIVE RULING #3:

PLAINTIFFS' REQUEST FOR REALLOCATION IS GRANTED. PLAINTIFF JAMES WHITE SHALL BE THE SOLE 100% OWNER OF PARCEL 1 IN FEE SIMPLE ABSOLUTE. PLAINTIFFS WILDERICH A. WHITE AND ANNA-MARIA M. WHITE SHALL EACH BE UNDIVIDED ONE-HALF (50%) TENANT IN

COMMON OWNERS OF PARCEL 2. PLAINTIFFS' REQUEST FOR DISTRIBUTION OF DEPOSITED FUNDS IS GRANTED AS INDICATED HEREIN.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.